

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.B. 1338
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 1-502, Arizona Revised Statutes, is amended to
3 read:

4 1-502. Eligibility for state or local public benefits;
5 documentation; violations; classification; citizen
6 suits; court costs and attorney fees; definition

7 A. Notwithstanding any other state law and to the extent allowed by
8 federal law, any agency of this state or a political subdivision of this
9 state that administers any state or local public benefit shall require
10 each natural person who applies for the state or local public benefit to
11 submit at least one of the following documents to the entity that
12 administers the state or local public benefit demonstrating lawful
13 presence in the United States:

14 1. An Arizona driver license issued after 1996 or an Arizona
15 nonoperating identification license.

16 2. A birth certificate or delayed birth certificate issued in any
17 state, territory or possession of the United States.

18 3. A United States certificate of birth abroad.

19 4. A United States passport.

20 5. A foreign passport with a United States visa.

21 6. An I-94 form with a photograph.

22 7. A United States citizenship and immigration services employment
23 authorization document or refugee travel document.

24 8. A United States certificate of naturalization.

25 9. A United States certificate of citizenship.

26 10. A tribal certificate of Indian blood.

27 11. A tribal or bureau of Indian affairs affidavit of birth.

1 [B.] THE FOLLOWING PERSONS ARE INELIGIBLE TO RECEIVE ANY STATE OR
2 LOCAL PUBLIC BENEFIT:

3 1. A PERSON WHOSE PRESENCE IN THE UNITED STATES IS NOT AUTHORIZED
4 BY FEDERAL LAW.

5 2. A FOREIGN NATIONAL WHO IS PAROLED INTO THE UNITED STATES BY THE
6 UNITED STATES DEPARTMENT OF HOMELAND SECURITY.

7 3. A FOREIGN NATIONAL WHO HAS INDICATED AN INTENTION TO APPLY FOR
8 ASYLUM IN THE UNITED STATES BUT WHOSE APPLICATION HAS NOT BEEN ADJUDICATED
9 IN THE AFFIRMATIVE.]

10 ~~[B.]~~ [C.] For the purposes of administering the Arizona health care
11 cost containment system, documentation of citizenship and legal residence
12 shall conform with the requirements of title XIX of the social security
13 act.

14 ~~[C.]~~ [D.] To the extent allowed by federal law, an agency of this
15 state or political subdivision of this state may allow tribal members, the
16 elderly and persons with disabilities or incapacity of the mind or body to
17 provide documentation as specified in section 6036 of the federal deficit
18 reduction act of 2005 (P.L. 109-171; 120 Stat. 81) and related federal
19 guidance in lieu of the documentation required by this section.

20 ~~[D.]~~ [E.] Any person who applies for state or local public benefits
21 shall sign a sworn affidavit stating that the documents presented pursuant
22 to subsection A of this section are true under penalty of perjury.

23 ~~[E.]~~ [F.] Failure to report discovered violations of federal
24 immigration law by an employee of an agency of this state or a political
25 subdivision of this state that administers any state or local public
26 benefit is a class 2 misdemeanor. If that employee's supervisor knew of
27 the failure to report and failed to direct the employee to make the
28 report, the supervisor is guilty of a class 2 misdemeanor.

29 ~~[F.]~~ [G.] This section shall be enforced without regard to race,
30 color, religion, sex, age, disability or national origin.

31 ~~[G.]~~ [H.] Any person who is a resident of this state has standing in
32 any court of record to bring suit against any agent or agency of this
33 state or its political subdivisions to remedy any violation of any
34 provision of this section, including an action for mandamus. Courts shall
35 give preference to actions brought under this section over other civil
36 actions or proceedings pending in the court.

37 ~~[H.]~~ [I.] The court may award court costs and reasonable attorney
38 fees to any person or any official or agency of this state or a county,
39 city, town or other political subdivision of this state that prevails by
40 an adjudication on the merits in a proceeding brought pursuant to this
41 section.

Senate Amendments to S.B. 1338

| 1 ~~[I.]~~ [J.] For the purposes of this section, "state or local public
2 benefit" has the same meaning prescribed in 8 United States Code section
3 1621, except that it does not include commercial or professional licenses,
4 postsecondary education, ~~benefits provided by the public retirement~~
5 ~~systems and plans of this state~~ or services widely available to the
6 general population as a whole.

7 Enroll and engross to conform

8 Amend title to conform

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